LANDMARK PRECEDENTS & CONSTITUTIONAL FRAMEWORK

Supreme Court Rulings and Constitutional Articles Cited in NirnayX Research
Articles 20(1), 21, 22, 141 & Binding Ratio Decidendi Guidelines

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Article 20(1) Constitution of India (Protection against Ex-Post Facto Laws)

No person shall be convicted of any offence except for violation of a law in force at the time of the commission of the act charged as an offence, nor be subjected to a penalty greater than that which might have been inflicted under the law in force at the time of the commission of the offence. In Nirnay-X, this forms the Substantive Penalty Ceiling: offenses prior to July 1, 2024 cannot be subjected to enhanced punishments or new minimums under BNS 2023.

Article 141 Constitution of India (Law Declared by Supreme Court to be Binding)

The law declared by the Supreme Court shall be binding on all courts within the territory of India. Larger Constitution Benches (5, 7, 9, or 13 judges) supersede smaller coordinate benches (2 or 3 judges). Decisions overruled by subsequent coordinate or larger benches lose precedential authority and must be penalized with zero weight in retrieval.

Article 21 & 22 Constitution of India (Personal Liberty and Arrest Safeguards)

Article 21 guarantees that no person shall be deprived of his life or personal liberty except according to procedure established by law. Article 22 provides that no person who is arrested shall be detained in custody without being informed, as soon as may be, of the grounds for such arrest, nor shall he be denied the right to consult and to be defended by a legal practitioner of his choice, with mandatory production before a Magistrate within 24 hours.

Lalita Kumari v. Government of Uttar Pradesh, (2014) 2 SCC 1 (Constitution Bench)

Core Ratio Decidendi: Registration of an FIR under Section 154 CrPC (Section 173 BNSS) is mandatory if the information discloses commission of a cognizable offence and no preliminary inquiry is permissible in such a situation. Preliminary inquiry is permissible only in exceptional cases (e.g., medical negligence, matrimonial disputes, commercial disputes) and must be completed within 7 days.

Arnesh Kumar v. State of Bihar, (2014) 8 SCC 273

Core Ratio Decidendi: Police officers shall not arrest an accused automatically when the offence is punishable with imprisonment for a term which may be less than seven years or which may extend to seven years. The police officer must satisfy himself about the necessity for arrest under the parameters of Section 41 CrPC (Section 35 BNSS). Instead of arrest, a Notice of Appearance under Section 41A CrPC (Section 35(3) BNSS) must be served within two weeks of FIR registration. Unjustified arrest by police officer or mechanical detention by Magistrate invites departmental action and contempt of court.

Satender Kumar Antil v. Central Bureau of Investigation, (2022) 10 SCC 51

Core Ratio Decidendi: Comprehensive guidelines categorized offenses into Categories A, B, C, and D for bail consideration. For Category A offenses (punishable with 7 years or less), bail applications should be decided ordinarily without remanding the accused to judicial custody if the accused has complied with Section 41A notices. Mandates strict compliance with Section 436A CrPC (Section 479 BNSS) granting mandatory release on personal bond for undertrials having served one-half or one-third of the maximum sentence.

D.K. Basu v. State of West Bengal, (1997) 1 SCC 416

Core Ratio Decidendi: Enunciated 11 binding guidelines to prevent custodial violence and protect fundamental rights: (1) Arresting personnel must bear accurate, visible name tags; (2) Arrest memo prepared with date, time, and signed by at least one witness/relative; (3) Right of arrested person to inform friend or relative within 8 to 12 hours; (4) Mandatory physical and medical examination at the time of arrest and every 48 hours during detention.

Section 74 of the POCSO Act, 2012 (Prohibition of Identity Disclosure)

No report in any newspaper, magazine, news-sheet or audio-visual media or other form of communication regarding any inquiry or investigation shall disclose the name, address, photograph, family details, school, neighbourhood or any other particulars which may lead to the identification of a child victim under the Protection of Children from Sexual Offences (POCSO) Act. Violation is punishable with imprisonment up to one year or fine or both.